

2023 P L C 1

[Lahore High Court (Rawalpindi Bench)]

Before Jawad Hassan, J

NOSHERWAN KHAN

Versus

UNITED BANK LIMITED and others

Writ Petition 2752 of 2017, heard on 25th October, 2022.

Industrial Relations Act (X of 2012)---

---S.33---Redress of individual grievances---Dismissal from service---Scope---Petitioner was a cashier in the respondent-Bank and he was dismissed from service on the charge levelled against him on the ground of misconduct and the allegation that he placed four fake currency notes in the stitched packet of Rs.1000/- currency notes---Validity---Gross misconduct of petitioner had resulted in defaming the reputation of the Bank which was almost important for the commercial establishment---Petitioner had joined the inquiry proceedings and had not objected to the inquiry officer that the inquiry was incomplete or it was not satisfactory---Although petitioner had served the Bank for a long period but the humiliation/disgrace and financial loss which the Bank suffered was equally of grave nature as such there seemed to be no warrant for High Court to interfere with the impugned orders passed by the Courts below which otherwise appeared to be just and proper---Procedural irregularities in the financial institutions could not be taken lightly and the officials responsible for such irregularities must be proceeded against for an appropriate action under the relevant rules by the competent authorities---Constitutional petition was dismissed.

Muhammad Ali S. Bukhari v. Federation of Pakistan through Establishment Secretary, Islamabad and 2 others 2008 PLC (C.S.) 428; Izzat Baig Awan v. Habib Bank Limited 2003 PLC (C.S.) 938 = 2004 SCMR 98; Muhammad Yousaf Khan v. Habib Bank Limited through President and others 2004 SCMR 149; Muhammad Yousaf Khan v. Habib Bank Ltd through President and others 2004 PLC (C.S.) 166; Allied Bank of Pakistan Limited through Attorneys and 2 others v. Muhammad Bashir Khan 2006 PLC 39 and Inam-ul-Haq v. Allied Bank Limited and 4 others 2018 PLC 215 ref.

Muhammad Saleem and 2 others v. Agricultural Development Bank of Pakistan, Islamabad and another 2003 PLC (C.S.) 36 and Izzat Baig Awan v. Habib Bank Limited 2003 PLC (C.S.) 938 = 2004 SCMR 98 rel.

Amjad Ghafoor for Petitioner.

Faisal Mehmood Ghanni for Respondents.

Date of hearing: 25th October, 2022.

JUDGMENT

JAWAD HASSAN, J.----Through this writ Petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has challenged the order/judgment dated 18.04.2017 and 19.10.2016 passed by the Respondent No.1 /Full Bench, NIRC, Islamabad and Respondent No.2/Member, NIRC, Islamabad, respectively.

2. Brief facts revealing from the petition are that the Petitioner was terminated from service on the charge that he placed four (04) fake currency notes in the stitched packet of Rs.1000/- currency notes. Feeling aggrieved thereby the Petitioner after multiple litigation before different forums ultimately filed grievance Petition before the Respondent No.2/Member NIRC which was dismissed vide judgment dated 19.10.2016. Feeling aggrieved thereof the Petitioner filed an Appeal before the Respondent No.1/Full Bench NIRC which also met with the same fate vide order/judgment dated 18.04.2017. Hence, this petition.

3. Learned counsel for the Petitioner inter alia submitted that the impugned order and judgment are against the law and facts because they are based on alleged confession of the Petitioner, which was not made by him. He added that neither the authority before whom the Petitioner made alleged confession nor the witnesses of alleged confession were produced by the Respondent/Bank in evidence. Further submitted that the inquiry was defective as no opportunity of cross-examination has been provided to him; that the Petitioner has been condemned unheard as no opportunity of personal hearing was ever given to him which is against the principle of natural justice. He further submitted that on the same allegation the Respondent/Bank got registered a criminal case against the Petitioner, wherein he has been acquitted by the competent Court of law but this important fact has not been looked into by the learned Courts below. Also stated that the Petitioner was victimized due to his active participation in trade union activities, therefore, the impugned orders/judgments are liable to be set aside.

4. On the other hand, learned counsel for the Respondents vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that there is concurrent finding by both the Courts below which cannot be interfered; that the impugned order as well as the judgment are in accordance with law. He further submitted that the Petitioner was charge sheeted on the ground of misconduct including replacement of currency notes with fake notes. Learned counsel for the Respondents, in support of his contentions, has placed reliance on the case titled Muhammad Ali S. Bukhari v. Federation of Pakistan through Establishment Secretary. Islamabad and 2 others (2008 PLC (C.S.) 428 [Supreme Court of Pakistan]), Muhammad Saleem and 2 others v. Agricultural Development Bank of Pakistan, Islamabad and another (2003 PLC (C.S.) 36 [Supreme Court of Pakistan], Izzat Baig Awan v. Habib Bank Limited (2004 SCMR 98), Muhammad Yousaf Khan v. Habib Bank Limited through President and others (2004 SCMR 149), Muhammad Yousaf Khan v. Habib Bank Ltd. through President and others (2004 PLC (C.S.) 166), Allied Bank of Pakistan Limited through Attorneys and 2 others v. Muhammad Bashir Khan (2006 PLC 39) and "Inam-ul-Haq v. Allied Bank Limited and 4 others" (2018 PLC 215).

5. I have heard the arguments by the learned counsel for the parties and perused the record.

6. From the perusal of record, it reveals that the Petitioner was a Cashier in the Respondents/Bank and he was dismissed from service on the charge levelled against him on the ground of misconduct and the allegation that he placed four (04) fake currency notes in the stitched packet of Rs.1000/- currency notes. The perusal of impugned order dated 18.04.2017 reveals that the Respondent No.1 after analyzing the material available on record found that the plea of the Petitioner is not reliable. He observed that admittedly the de novo inquiry proceedings were initiated on the direction of learned Labour Court while passing the order of reinstatement of the Petitioner. It is a gross misconduct of the Petitioner which resulted in defaming the reputation of the bank which is almost important for the commercial establishment. Furthermore, the valid grievance notice was served upon the Petitioner and he joined the inquiry proceedings. The Petitioner did not object to the inquiry officer that inquiry is incomplete or it is not satisfactory. Moreover, the impugned judgment dated 18.04.2017 also upheld the order dated 19.10.2016 of the Respondent No.2.

7. Although the Petitioner had served the bank for a long period but the humiliation/disgrace and financial loss which the bank suffered is equally of grave nature as such there seems to be no warrant for this Court to interfere with the impugned orders/judgments passed by the learned Courts below which otherwise appears to be just and proper. As the Hon'ble Supreme Court of Pakistan in case titled Izzat Baig Awan v. Habib Bank Limited (2003 PLC (C.S.) 938) = (2004 PLC (C.S.) 98) has held as under:

"Institution of banking is one of trust reposed by public at large and Bank Authorities in peculiar nature of the duties of their employees cannot afford breach of trust by retaining in service people who are involved in criminal cases."

8. From the above, it has been established that the Petitioner was found to have committed the act of gross misconduct because he replaced fake currency notes with the original ones despite the fact that the nature of Petitioner's job required to be performed by him, was extremely sensitive and resultantly, his misconduct caused major loss to the Bank. The Hon'ble Supreme Court of Pakistan in case titled Muhammad Saleem and 2 others v. Agricultural Development Bank of Pakistan, Islamabad and another (2003 PLC (C.S.) 36) has held that there is no cavil to the proposition that the procedural irregularities in the financial institutions cannot be taken lightly and the officials responsible for such irregularities must be proceeded against for an appropriate action under the relevant rules by the competent authority.

9. The learned counsel for the Petitioner has not been able to make out a case of reinstatement into the service of the Petitioner. He has not produced any cogent and confidence inspiring reasons to interfere in the concurrent findings of both the impugned order and judgment. The instant petition being bereft of any force, is hereby dismissed.

SA/N-41/L

Petition dismissed